

24AVCV01648 24AVCV01648

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-07-16

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ATP%2CA14%2C07%2F16%2F2026

Source SHA-256: 77a9bad2381fcf48ca7f6030094d7a18f2998eec52626433ea61fb01b78a3cbb

Case Number: 24AVCV01648 Hearing Date: July 16, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

LINDSAY ROSS,

Plaintiff,

v.

U-HAUL COMPANY OF CALIFORNIA, and SANTI,

Defendants.

Case Number 24AVCV01648

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 16, 2026

Dept. A-14

Judge William H. Forman

I. Background

On December 16, 2024, Plaintiff Lindsay Ross (Plaintiff) filed his complaint against U-Haul Company of California (Defendant) and Santi.

On February 3, 2025, Plaintiff filed his first amended complaint (FAC) asserting two causes of action for (1) breach of contract and (2) discrimination under the Unruh Act.

On April 8, 2025, the Court sustained Defendant's demurrer to the FAC without leave to amend as to the breach of contract claim, and with 30 days' leave to amend as to the Unruh Act claim.

On April 17, 2025, Plaintiff filed a motion for reconsideration of the Court's Order sustaining Defendant's demurrer. The Court denied the motion on May 19, 2025.

On May 12, 2025, before the reconsideration hearing, Plaintiff filed a proposed SAC containing three causes of action for (1) breach of contract, (2) discrimination, and (3) fraudulent misrepresentation. On July 3, 2025, the Court struck the proposed SAC as untimely and denied Plaintiff's motion for leave to amend, holding that the operative complaint was the FAC to which Defendant's demurrer was sustained.

On July 9, 2025, Plaintiff filed a notice of appeal regarding the Order sustaining Defendant's demurrer.

On August 1, 2026, Plaintiff filed a second motion for leave to amend his complaint. The motion was vacated on August 26, 2025 and the Court stayed proceedings pending Plaintiff's appeal.

On March 26, 2026, Plaintiff's appeal was dismissed.

On April 15, 2026, Plaintiff filed a motion for leave to file a SAC. The motion was denied on May 7, 2026 as moot, as Plaintiff had included with his reply brief an new version of the Second Amended Complaint that he wished to file.

On June 9, 2026, Plaintiff filed the instant motion for leave to file a SAC.

On July 2, 2026, Defendant filed its opposition.

On July 9, 2026, Plaintiff filed his reply.

II. Preliminary Procedural Issues

Timeliness of Plaintiff's Motion – On May 7, 2026, Plaintiff was ordered to file a new motion for leave to file a second amended complaint within 30 days. Plaintiff filed the present motion on June 9, 2026. Thus, Plaintiff's motion is untimely.

However, given Defendant's substantive and timely opposition, and in the absence of prejudice to Defendant, the Court will consider the motion.

III. Judicial Notice

Defendant's Request for Judicial Notice – Defendant requests that the Court take judicial notice of three documents: (1) Minute Order following the hearing on Defendant's demurrer dated April 8, 2025, (2) Minute Order following the hearing on Plaintiff's Motion for Reconsideration of Demurrer dated May 19, 2025, and (3) Minute Order following the hearing on Plaintiff's motion for leave to file second amended complaint late dated July 3, 2025.

Defendant's request for judicial notice is GRANTED.

IV. Legal Standard

Standard for Leave to File an Amended Complaint – Code of Civil Procedure section 473, subdivision (a)(1) provides, in relevant part: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." This discretion should be exercised liberally in favor of amendments, for "judicial policy favors resolution of all disputed matters in the same lawsuit." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047.)

"The trial court has discretion to permit or deny the amendment of the complaint, but instances justifying the court's denial of leave to amend are rare." (*Armenta ex rel. City of Burbank v. Mueller Co.* (2006) 142 Cal.App.4th 636, 642.) However, "[a]lthough courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citation], this policy should be applied only '[w]here no prejudice is shown to the adverse party . . . ' [Citation.] A different result is indicated '[w]here inexcusable delay and probable prejudice to the opposing party' is shown. [Citation.]" (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487.) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend." (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530.) Prejudice includes "delay in trial, loss of critical evidence, or added costs of preparation." (*Solit v. Tokai Bank, Ltd. New York Branch* (1999) 68 Cal.App.4th 1435, 1448.)

Under rule 3.1324, subdivision (a) of the California Rules of Court, a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324(a).)

Under subdivision (b), a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (*Id.*, subd. (b).)

I. Discussion

Application – Plaintiff requests leave to file an SAC to address issues and deficiencies in his FAC and to include new causes of action for unfair competition, fraudulent misrepresentation, negligent misrepresentation, promissory estoppel, and breach of the implied covenant of good faith and fair dealing, and additional factual allegations as to these new causes of action. (Motion, ¶ 3.)

a. Leave to Amend

Notwithstanding Plaintiff's compliance with the procedural requirements of Rule 3.1324, the Court finds that Defendant's proposed SAC does not comply with the leave granted following the Order sustaining Defendant's demurrer to the FAC, and thus is not filed in conformity with an Order of the Court. On April 8, 2025, the Court sustained Defendant's demurrer as to the first cause of action for breach of contract without leave to amend. (See Minute Order dated 4/8/25.) Plaintiff's proposed SAC asserts as the sixth cause of action breach of the implied covenant of good faith and fair dealing arising from Defendant's alleged breach of contractual obligations to Plaintiff. (Proposed SAC, ¶ 60-66.) It appears here that Plaintiff is attempting to reincorporate the issue of breach of contract into the proposed SAC, which the Court did not grant him leave to do.

Defendant's main objection to the motion for leave to file the SAC is that Plaintiff is adding causes of action to the FAC, when the Court's Order of 4/8/25 did not give him leave to do so. Defendant's arguments would be well-taken if Plaintiff simply had filed a SAC with the additional causes of action without leave. Here, Plaintiff is expressly asking leave of the Court to add those causes of action and present them in the proposed SAC.

The Court could require Plaintiff to first file a SAC in conformity with its 4/8/25 Order sustaining the demurrer, and then direct Plaintiff to file a motion for leave to file a Third Amended Complaint asserting the new claims. Indeed, the Court was inclined at first to do just that. But that would insert an unnecessary and time-wasting step into the litigation. The fact is that based on the Opposition offered, there is no prejudice to granting Plaintiff leave to file the proposed SAC, with the following exception. Plaintiff is not granted leave to include the Sixth Cause of Action for breach of the implied covenant of good faith and fair dealing cause of action as the Court previously sustained without leave to amend the cause of action for breach of contract. The Court sustained without leave as, by law, no contract was formed between Plaintiff and Defendant and Plaintiff could not allege facts to support the element of consideration. Where there is no enforceable contract, there can be no claim for the breach of the covenant of good faith and fair dealing. (Alameda Healthy Sys. V. Alameda Cnty. Employees Ret. Assn. (2014) 100 Cal.App.5th 1159.)

As to the deficiencies on the other proposed additional causes of action to be included in the SAC, Defendant will have an opportunity to challenge those on demurrer or by other responsive pleading

Accordingly, Plaintiff's motion is GRANTED, with the exception of the proposed Sixth Cause of Action for Breach of the Covenant of Good Faith and Fair Dealing, to which it is DENIED..

II. Conclusion

Plaintiff Lindsay Ross's Motion for Leave to File a Second Amended Complaint is GRANTED in part, and DENIED in part. Consistent with this Order, Plaintiff is to file his proposed Second Amended Complaint, omitting the Sixth Cause of Action for Breach of the Covenant of Good Faith and Fair Dealing, on or by July 24, 2026. If Plaintiff fails to file the SAC by that time, Defendant may move ex parte to dismiss this matter given Plaintiff's prior failure to file an amended complaint following the Court's Order of 4/8/25 sustaining the demurrer.